

was enacted (by s. 8), that a *contingent remainder* should be deemed capable of taking effect, notwithstanding the determination by *forfeiture*, *surrender*, or *merger* of any preceding estate of freehold, in the same manner in all respects as if such determination had not happened.

11. Remarks upon the limitation to preserve contingent remainders.—In consequence of this enactment it is now unnecessary to make use of any machinery for preserving contingent remainders from destruction by the *forfeiture*, *surrender*, or *merger* of the preceding estate; and therefore, if an estate be limited to the use of A. for life, with remainder to his unborn children, the contingent limitations cannot be defeated. But limitations to trustees, during the lives of the tenants for life, are still frequently introduced in settlements for the purpose of creating a check upon the tenants for life, as, in cases of waste by the tenants for life, it would be the duty of the trustees to interfere as protectors of the remaindermen's interest (*b*).

12. Contingent remainders may still be defeated by determination of life estate in due course.—Contingent remainders however created before the recent Act (*c*) still remain liable to be defeated, should the preceding life estate determine, *in due course*, before they become vested, and the limitation of an estate *pur autre vie* adequate to support the contingent remainders is accordingly in many cases a matter of considerable importance. Thus if an estate be limited to A. for life, with remainder to the unborn children of B., or to the children of B. who should attain 21, here the contingent remainders, if B. survives A., would require support by a limitation of the estate to trustees after the death of A. until the children of B. should come into existence, in the one case, or until a child should attain 21 in the other.

*** 40 & 41 Vict. c. 33.**—[But now by the recent [*384] Act (*a*) every contingent remainder created by any instrument executed after the passing of the Act (2 August, 1877), or by any will or codicil revived or republished by any

(*b*) *Perrot v. Perrot*, 3 Atk. 94, *per*
Lord Hardwicke; *Garth v. Cotton*, 1
Ves. sen. 555, *per eundem*.

[(*c*) 40 & 41 Vict. c. 33.]

[(*a*) 40 & 41 Vict. c. 33.]